UNITED STATES FEDERAL COURT

DISTRICT OF OREGON

JERRY NELSON,	)	Civil Case Number: 6:25-cv-02031-MTK
Plaintiff	)	
v.	)	PROPOSED FIRST AMENDED COMPLAINT -
LANE COUNTY	)	CHANGES SHOWN
GOVERNMENT,	)	
IN THE STATE OF OREGON	)	
Defendant	)	

Plaintiff Jerry Nelson alleges:

I. PARTIES

[ADDED/REVISED] 1. Plaintiff Jerry Nelson is an individual residing in Lane County, Oregon.

[ADDED/REVISED] 2. Defendant Lane County is an Oregon county and a public entity responsible for the code-enforcement, administrative-hearing, civil-penalty, and lien practices at issue.

II. JURISDICTION AND VENUE

[ADDED/REVISED] 3. This Court has federal-question jurisdiction under 28 U.S.C. §§ 1331 and 1343 because Plaintiff asserts claims under 42 U.S.C. § 1983, the Fourteenth and Eighth Amendments to the United States Constitution, and Title II of the Americans with Disabilities Act, 42 U.S.C. §§ 12131–12134.

[ADDED/REVISED] 4. Venue is proper in the District of Oregon under 28 U.S.C. § 1391(b) because Defendant resides in this District and the events occurred in Lane County, Oregon. Divisional venue lies in the Eugene Division.

III. FACTUAL ALLEGATIONS

A. Property and County enforcement

[ADDED/REVISED] 5. Plaintiff owned property located at 82602 Howe Lane, Creswell,

Oregon 97426, which was the subject of Lane County Land Management Division File No. 509-CA22-00334.

[ADDED/REVISED] 6. Lane County alleged violations under Lane Code 9.584 involving the accumulation, collection, storage, or disposal of solid waste or other debris.

[ADDED/REVISED] 7. On or about April 6, 2023, Lane County issued an Order to Comply with a stated compliance date of April 10, 2023, addressed to 410 W. 27th Avenue, Eugene, Oregon 97405, an address where Plaintiff had not lived for approximately 17 years. The order required the identified waste and debris to be removed.

[ADDED/REVISED] 8. On or about April 27, 2023, Lane County issued a Notice of Failure to Comply stating that a civil penalty of approximately $1,680 per day would begin on May 3, 2023, and continue until the alleged violations were corrected.

B. Notice and opportunity to be heard

[ADDED/REVISED] 9. During the relevant period, Plaintiff's mailing address was 2725 City View Street, Eugene, Oregon 97405.

[ADDED/REVISED] 10. Lane County sent material enforcement notices to 410 W. 27th Avenue, Eugene, Oregon 97405, an address Plaintiff had not used as his mailing address for 17 years.

[ADDED/REVISED] 11. Lane County produced a certified-mail return receipt dated June 2, 2023, that it says Plaintiff signed. Plaintiff doesn't remember this incident or opening this letter

[ADDED/REVISED] 12. The Notice of Failure to Comply contained language describing a right to appeal. Plaintiff did not appeal File No. 509-CA22-00334. His September 2025 appeal concerned a different matter, File No. 509-CA25-00339, involving 88130 Green Hill Road. Plaintiff has multiple disabilities and lacks computer skills necessary to file all the appeal paperwork.

[ADDED/REVISED] 13. Plaintiff alleges that the notice and appeal process was not meaningful because his ability to use the process was limited by his mental condition, disabilities, and computers kills. Both the City and County were fining Plaintiff, it was overwhelming. The complexity of the process added to the time it took to clean up the properties and the deal with the fines. Lane County didn't make it clear exactly how to comply, and thus shouldn't be fining citizens thousands of dollars in fines daily, especially for a senior citizen over 70.

C. Plaintiff's disabilities and County knowledge

[ADDED/REVISED] 14. Plaintiff has diagnosed PTSD, hoarding disorder, schizotypal personality disorder, and depression. These conditions substantially limit major life activities, such as concentrating, organizing, thinking, and completing multi-step tasks.

[ADDED/REVISED] 15. On April 15, 2025, Plaintiff delivered a handwritten letter in person to Lane County describing his mental-health limitations and asking the County to suspend penalties so he could use his resources for cleanup, hire assistance, and document progress. Plaintiff had Lane County officials create a photo copy and he has the original letter to submit as Exhibit 2.

[ADDED/REVISED] 16. Plaintiff also attended two meetings in a Lane County conference room with code-enforcement personnel and a hearings official and showed them medical records and a medication list. The exact meeting dates are not known or the participants but Lane County should have records.

[ADDED/REVISED] 17. At those meetings, Plaintiff requested an extension to the deadline and to use the fines to pay to remove the junk.

[ADDED/REVISED] 18. County personnel did not respond in a memorable way, the exact response is not recallable.

[ADDED/REVISED] 19. Plaintiff alleges that additional cleanup time, suspension of additional penalties while documented cleanup progressed, notices at his correct address, and communication suited to his limitations were reasonable modifications because they would have allowed enforcement to continue while giving him meaningful access to the compliance and hearing processes.

[ADDED/REVISED] 20. Lane County did not respond to the April 15, 2025 letter.

[ADDED/REVISED] 21. Plaintiff doesn't have a full list of the lean,s but Defendants can provide the exact numbers.

[ADDED/REVISED] 22. Lane County collected approximately $118,759 from the November 2023 property sale before the dated April 2025 letter. Plaintiff alleges that additional penalties continued afterward. Plaintiff doesn't have an exhaustive list of all of the penalties, but Defendants can produce those numbers for the Court.

D. Penalties, lien, and collection

[ADDED/REVISED] 23. The daily penalties in File No. 509-CA22-00334 accumulated to approximately $118,759, including interest, by the November 2023 collection. A separate instrument dated May 23, 2025, was recorded as Reception No. 2025-015117 and states an amount of approximately $134,400.

[ADDED/REVISED] 24. On or about September 21, 2023, Lane County signed an order concerning the accumulated penalties, and on September 22, 2023, it recorded a lien.

[ADDED/REVISED] 25. On or about November 1, 2023, when Plaintiff sold property at 1625 Bailey Hill Road, Lane County collected approximately $118,759, including interest, from the sale proceeds.

[ADDED/REVISED] 26. Plaintiff estimates that correcting the conditions at the subject property would have cost approximately $10,000 for labor, equipment, and disposal fees.

[ADDED/REVISED] 27. Plaintiff undertook cleanup by renting dumpsters and loading equipment, using a front-end loader and his truck, and paying workers. Receipts with exact dates available upon request.

[ADDED/REVISED] 28. Plaintiff alleges that the penalty was grossly disproportionate because it exceeded the estimated remediation cost by more than ten times, the matter involved a noncriminal property-code violation, Plaintiff undertook cleanup efforts, and third parties trespassers and squatters contributed to the accumulation.

E. County policy or official decision

[ADDED/REVISED] 29. Lane County assessed the penalties and recorded and enforced the lien under its written code-enforcement provisions and the September 21, 2023 enforcement order.

[ADDED/REVISED] 30. Lane County states that its service practice was to mail enforcement documents to the property owner’s address shown in current tax records. This practice is constitutionally defective because it doesn't give citizens their Procedural Due Process Right to be made aware of the charges against them. To file this lawsuit Plaintiff is required to contact and negotiate with Defendants to sue them for money but the State is magically not required to go through the same process.

[ADDED/REVISED] 31. The alleged constitutional deprivations were caused by excessive

fines. Plaintiff alleges an unsupported failure-to-train theory or a pattern of violations against unidentified people. Plaintiff has a Right to his property (including the junk) without due process of law. The State didn't use Substantial Evidence to take Plaintiff's Certain Rights, the State only made accusations based on pictures that are a matter of opinion. Lane County never submitted any evidence to any Court, they just started fining Plaintiff.

IV. First claim — Title II of the Americans with Disabilities Act

[ADDED/REVISED] 32. Plaintiff incorporates paragraphs 1–31.

[ADDED/REVISED] 33. Plaintiff is a qualified individual with disabilities within the meaning of Title II of the ADA.

[ADDED/REVISED] 34. Lane County is a public entity. Its code-enforcement, administrative-appeal, hearing, compliance, and civil-penalty systems are services, programs, or activities of that public entity.

[ADDED/REVISED] 35. Because of the limitations described above, Plaintiff required reasonable disability accommodations to have meaningful access to those services, programs, or activities.

[ADDED/REVISED] 36. Lane County knew of Plaintiff's disabilities and need for modification no later than April 15, 2025, if the County received the handwritten letter described above.

[ADDED/REVISED] 37. Plaintiff requested the modifications described above, but Lane County verbally acknowledged they know of Plaintiff's condition but ignored the requests.

[ADDED/REVISED] 38. As a result, Plaintiff was excluded from or denied meaningful access to disability accommodations and legal remedies, causing emotional distress.

[ADDED/REVISED] 39. Plaintiff seeks compensatory damages under Title II only to the extent legally available. After Lane County because aware of Plaintiff's disabilities, they were deliberately indifferent.

V. Second claim — Fourteenth Amendment due process under 42 U.S.C. § 1983

[ADDED/REVISED] 40. Plaintiff incorporates paragraphs 1–31.

[ADDED/REVISED] 41. Plaintiff had protected property interests in the money taken from his sale proceeds and in the real property burdened by Lane County’s lien.

[ADDED/REVISED] 42. Acting under color of state law, Lane County deprived Plaintiff of those interests by assessing daily penalties, recording the lien, and collecting approximately

$118,759 with additional outstanding penalties.

[ADDED/REVISED] 43. Plaintiff alleges that the notice and opportunity to be heard were constitutionally inadequate because Lane County sent enforcement notices to a former address and the fines were continuing to build up.

[ADDED/REVISED] 44. The deprivation was caused by the County policy, practice, or final official decision identified in paragraphs 29–31.

[ADDED/REVISED] 45. Plaintiff lost approximately $118759, interest, and additional unpaid fines as a direct result.

VI. Third claim — Eighth Amendment Excessive Fines Clause under 42 U.S.C. § 1983

[ADDED/REVISED] 46. Plaintiff incorporates paragraphs 1–31.

[ADDED/REVISED] 47. The accumulated civil penalty constituted a fine within the meaning of the Eighth Amendment because it served, at least in part, a punitive purpose.

[ADDED/REVISED] 48. The penalty was grossly disproportionate to the gravity of the underlying violation for the reasons alleged in paragraphs 26–28.

[ADDED/REVISED] 49. Lane County imposed and collected the fine under the policy, practice, or final official decision identified in paragraphs 29–31.

[ADDED/REVISED] 50. Plaintiff suffered a loss of approximately $118,759, including interest, from the November 2023 collection, and $1,000,000 in additional damages under the ADA and other statues.

VII. Requested relief

Plaintiff requests:

[ADDED/REVISED] A. A declaration that Defendant violated Plaintiff's rights;

[ADDED/REVISED] B. Compensatory damages in an amount proven at trial, including the money unlawfully collected if recoverable;

[ADDED/REVISED] C. Order that all other liens be removed and set aside.

[ADDED/REVISED] D. Prejudgment and post-judgment interest as allowed by law;

[ADDED/REVISED] E. Costs and any attorney fees authorized by law if counsel later appears or fees otherwise become recoverable; and

[ADDED/REVISED] F. Other relief the Court deems just and proper.

Plaintiff demands a Jury trial.

DATED: _____, 2026

Respectfully submitted,

x_____

Jerry Nelson

Plaintiff, Self-Represented

CERTIFICATE OF SERVICE

I hereby certify that on _____, 2026 I served the PROPOSED FIRST AMENDED COMPLAINT – CHANGES SHOWN document by placing a copy in a first-class postage-paid envelope in Eugene Oregon for delivery by U.S. Mail to the address set forth below:

Lane County Government, in the State of Oregon
C/O Mallory R Beebee, OSB #115138
LANE COUNTY OFFICE OF LEGAL COUNSEL
125 East Eight Avenue
Eugene Oregon 97401

DATED _____, 2026

x_____
Jerry Nelson